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properly ranked among the array of claim-processing rules that must be timely raised to come into play.

I

Title VII directs that a “charge . . . shall be filed” with the EEOC “by or on behalf of a person claiming to be aggrieved” within 180 days “after the alleged unlawful employment practice occur[s].” 42 U. S. C. § 2000e–5(b), (e)(1). For complaints concerning a practice occurring in a State or political subdivision that has a fair employment agency of its own empowered “to grant or seek relief,” Title VII instructs the complainant to file her charge first with the state or local agency. § 2000e–5(c). The complainant then has 300 days following the challenged practice, or 30 days after receiving notice that state or local proceedings have ended, “whichever is earlier,” to file a charge with the EEOC. § 2000e–5(e)(1). If the state or local agency has a “worksharing” agreement with the EEOC, a complainant ordinarily need not file separately with federal and state agencies. She may file her charge with one agency, and that agency will then relay the charge to the other. See 29 CFR § 1601.13 (2018); Brief for United States as *Amicus Curiae* 3.

When the EEOC receives a charge, in contrast to agencies like the National Labor Relations Board, 29 U. S. C. § 160, and the Merit Systems Protection Board, 5 U. S. C. § 1204, it does not “adjudicate [the] clai[m],” *Alexander v. Gardner-Denver Co.*, 415 U. S. 36, 44 (1974). Instead, Title VII calls for the following course. Upon receiving a charge, the EEOC notifies the employer and investigates the allegations. 42 U. S. C. § 2000e–5(b). If the Commission finds “reasonable cause” to believe the charge is true, the Act instructs the Commission to “endeavor to eliminate [the] alleged unlawful employment practice by informal methods of conference, conciliation, and persuasion.” *Ibid.* When informal methods do not resolve the charge, the EEOC has first option to “bring a civil action” against the employer in court.

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§ 2000e–5(f)(1). Where the discrimination charge is lodged against state or local government employers, the Attorney General is the federal authority empowered to commence suit. *Ibid.*¹

In the event that the EEOC determines there is “n[o] reasonable cause to believe that the charge is true,” the Commission is to dismiss the charge and notify the complainant of his or her right to sue in court. 42 U. S. C. § 2000e–5(b), (f)(1); 29 CFR § 1601.28. Whether or not the EEOC acts on the charge, a complainant is entitled to a “right-to-sue” notice 180 days after the charge is filed. § 2000e–5(f)(1); 29 CFR § 1601.28. And within 90 days following such notice, the complainant may commence a civil action against the allegedly offending employer. § 2000e–5(f)(1).

II

Respondent Lois M. Davis worked in information technology for petitioner Fort Bend County. In 2010, she informed Fort Bend’s human resources department that the director of information technology, Charles Cook, was sexually harassing her. Following an investigation by Fort Bend, Cook resigned. Davis’ supervisor at Fort Bend, Kenneth Ford, was well acquainted with Cook. After Cook resigned, Davis alleges, Ford began retaliating against her for reporting Cook’s sexual harassment. Ford did so, according to Davis, by, *inter alia*, curtailing her work responsibilities.

Seeking redress for the asserted harassment and retaliation, Davis submitted an “intake questionnaire” in February 2011, followed by a charge in March 2011.² While her

¹ A different provision of Title VII, 42 U. S. C. § 2000e–16, prohibits employment discrimination by the Federal Government and sets out procedures applicable to claims by federal employees.

² Davis submitted these documents to the Texas Workforce Commission. Complaints lodged with that commission are relayed to the EEOC, under a “worksharing” agreement between the two agencies. See How To Submit an Employment Discrimination Complaint, Texas Workforce Commission,

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EEOC charge was pending, Davis was told to report to work on an upcoming Sunday. Davis informed her supervisor Ford that she had a commitment at church that Sunday, and she offered to arrange for another employee to replace her at work. Ford responded that if Davis did not show up for the Sunday work, she would be subject to termination. Davis went to church, not work, that Sunday. Fort Bend thereupon fired her.

Attempting to supplement the allegations in her charge, Davis handwrote “religion” on the “Employment Harms or Actions” part of her intake questionnaire, and she checked boxes for “discharge” and “reasonable accommodation” on that form. She made no change, however, in the formal charge document. A few months later, the Department of Justice notified Davis of her right to sue.

In January 2012, Davis commenced a civil action in the United States District Court for the Southern District of Texas, alleging discrimination on account of religion and retaliation for reporting sexual harassment.³ The District Court granted Fort Bend’s motion for summary judgment. *Davis v. Fort Bend County*, 2013 WL 5157191 (SD Tex., Sept. 11, 2013). On appeal, the Court of Appeals for the Fifth Circuit affirmed as to Davis’ retaliation claim, but reversed as to her religion-based discrimination claim. *Davis v. Fort Bend County*, 765 F. 3d 480 (2014). Fort Bend filed a petition for certiorari, which this Court denied. 576 U.S. 1004 (2015).

When the case returned to the District Court on Davis’ claim of discrimination on account of religion, Fort Bend moved to dismiss the complaint. Years into the litigation, Fort Bend asserted for the first time that the District Court

<https://twc.texas.gov/jobseekers/how-submit-employment-discrimination-complaint> (as last visited May 30, 2019).

³ Davis also alleged intentional infliction of emotional distress, but she did not appeal the District Court’s grant of summary judgment to Fort Bend on that claim.

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lacked jurisdiction to adjudicate Davis’ religion-based discrimination claim because she had not stated such a claim in her EEOC charge. Granting the motion, the District Court held that Davis had not satisfied the charge-filing requirement with respect to her claim of religion-based discrimination, and that the requirement qualified as “jurisdictional,” which made it nonforfeitable. 2016 WL 4479527 (SD Tex., Aug. 24, 2016).

The Fifth Circuit reversed. 893 F. 3d 300 (2018). Title VII’s charge-filing requirement, the Court of Appeals held, is not jurisdictional; instead, the requirement is a prudential prerequisite to suit, forfeited in Davis’ case because Fort Bend did not raise it until after “an entire round of appeals all the way to the Supreme Court.” *Id.*, at 307–308.

We granted Fort Bend’s petition for certiorari, 586 U.S. 1113 (2019), to resolve a conflict among the Courts of Appeals over whether Title VII’s charge-filing requirement is jurisdictional. Compare, *e.g.*, 893 F. 3d, at 306 (case below) (charge-filing requirement is nonjurisdictional), with, *e.g.*, *Jones v. Calvert Group, Ltd.*, 551 F. 3d 297, 300 (CA4 2009) (federal courts lack subject-matter jurisdiction when the charge-filing requirement is not satisfied).

III

“Jurisdiction,” the Court has observed, “is a word of many, too many, meanings.” *Kontrick*, 540 U.S., at 454 (quoting *Steel Co. v. Citizens for Better Environment*, 523 U.S. 83, 90 (1998)).⁴ In recent years, the Court has undertaken “[t]o

⁴“Courts, including this Court, . . . have more than occasionally [mis]-used the term ‘jurisdictional’” to refer to nonjurisdictional prescriptions. *Scarborough v. Principi*, 541 U.S. 401, 413 (2004) (quoting *Kontrick v. Ryan*, 540 U.S. 443, 454 (2004) (alterations in original)). Passing references to Title VII’s charge-filing requirement as “jurisdictional” in prior Court opinions, see, *e.g.*, *McDonnell Douglas Corp. v. Green*, 411 U.S. 792, 798 (1973), display the terminology employed when the Court’s use of “jurisdictional” was “less than meticulous,” *Kontrick*, 540 U.S., at 454.

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ward off profligate use of the term.” *Sebelius v. Auburn Regional Medical Center*, 568 U. S. 145, 153 (2013). As earlier noted, see *supra*, at 1, the word “jurisdictional” is generally reserved for prescriptions delineating the classes of cases a court may entertain (subject-matter jurisdiction) and the persons over whom the court may exercise adjudicatory authority (personal jurisdiction). *Kontrick*, 540 U. S., at 455.

Congress may make other prescriptions jurisdictional by incorporating them into a jurisdictional provision, as Congress has done with the amount-in-controversy requirement for federal-court diversity jurisdiction. See 28 U. S. C. § 1332(a) (“The district courts shall have original jurisdiction of all civil actions where the matter in controversy exceeds the sum or value of \$75,000 . . . and is between (1) citizens of different States . . .”). In addition, the Court has stated it would treat a requirement as “jurisdictional” when “a long line of [Supreme] Cour[t] decisions left undisturbed by Congress” attached a jurisdictional label to the prescription. *Union Pacific R. Co. v. Locomotive Engineers*, 558 U. S. 67, 82 (2009) (citing *Bowles v. Russell*, 551 U. S. 205, 209–211 (2007)). See also *John R. Sand & Gravel Co. v. United States*, 552 U. S. 130, 132 (2008).

Characterizing a rule as a limit on subject-matter jurisdiction “renders it unique in our adversarial system.” *Auburn*, 568 U. S., at 153. Unlike most arguments, challenges to subject-matter jurisdiction may be raised by the defendant “at any point in the litigation,” and courts must consider them *sua sponte*. *Gonzalez v. Thaler*, 565 U. S. 134, 141 (2012). “[H]arsh consequences” attend the jurisdictional brand. *United States v. Kwai Fun Wong*, 575 U. S. 402, 409 (2015). “Tardy jurisdictional objections” occasion wasted court resources and “disturbingly disarm litigants.” *Auburn*, 568 U. S., at 153.

The Court has therefore stressed the distinction between jurisdictional prescriptions and nonjurisdictional claim-processing rules, which “seek to promote the orderly prog-

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ress of litigation by requiring that the parties take certain procedural steps at certain specified times.” *Henderson v. Shinseki*, 562 U. S. 428, 435 (2011). A claim-processing rule may be “mandatory” in the sense that a court must enforce the rule if a party “properly raise[s]” it. *Eberhart v. United States*, 546 U. S. 12, 19 (2005) (*per curiam*). But an objection based on a mandatory claim-processing rule may be forfeited “if the party asserting the rule waits too long to raise the point.” *Id.*, at 15 (quoting *Kontrick*, 540 U. S., at 456).⁵

The Court has characterized as nonjurisdictional an array of mandatory claim-processing rules and other preconditions to relief. These include: the Copyright Act’s requirement that parties register their copyrights (or receive a denial of registration from the Copyright Register) before commencing an infringement action, *Reed Elsevier, Inc. v. Muchnick*, 559 U. S. 154, 157, 163–164 (2010); the Railway Labor Act’s direction that, before arbitrating, parties to certain railroad labor disputes “attempt settlement ‘in conference,’” *Union Pacific*, 558 U. S., at 82 (quoting 45 U. S. C. § 152); the Clean Air Act’s instruction that, to maintain an objection in court on certain issues, one must first raise the objection “with reasonable specificity” during agency rulemaking, *EPA v. EME Homer City Generation, L. P.*, 572 U. S. 489, 511–512 (2014) (quoting 42 U. S. C. § 7607(d)(7)(B)); the Antiterrorism and Effective Death Penalty Act’s requirement that a certificate of appealability “indicate [the] specific issue” warranting issuance of the certificate, *Gonzalez*, 565 U. S., at 137 (quoting 28 U. S. C. § 2253(c)(3)); Title VII’s limitation of covered “employer[s]” to those with 15 or more employees, *Arbaugh v. Y & H Corp.*, 546 U. S. 500, 503–504 (2006) (quoting 42 U. S. C. § 2000e(b)); Title VII’s time limit for filing a charge with the EEOC, *Zipes v. Trans World Airlines, Inc.*, 455 U. S. 385, 393 (1982); and several other time prescriptions

⁵The Court has “reserved whether mandatory claim-processing rules may [ever] be subject to equitable exceptions.” *Hamer v. Neighborhood Housing Servs. of Chicago*, 583 U. S. 17, 20, n. 3 (2017).

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for procedural steps in judicial or agency forums. See, *e. g.*, *Hamer v. Neighborhood Housing Servs. of Chicago*, 583 U. S. 17, 27 (2017); *Musacchio v. United States*, 577 U. S. 237, 246 (2016); *Kwai Fun Wong*, 575 U. S., at 412; *Auburn*, 568 U. S., at 149; *Henderson*, 562 U. S., at 431; *Eberhart*, 546 U. S., at 13; *Scarborough v. Principi*, 541 U. S. 401, 414 (2004); *Kontrick*, 540 U. S., at 447.⁶

While not demanding that Congress “incant magic words” to render a prescription jurisdictional, *Auburn*, 568 U. S., at 153, the Court has clarified that it would “leave the ball in Congress’ court”: “If the Legislature clearly states that a [prescription] count[s] as jurisdictional, then courts and litigants will be duly instructed and will not be left to wrestle with the issue[;] [b]ut when Congress does not rank a [prescription] as jurisdictional, courts should treat the restriction as nonjurisdictional in character.” *Arbaugh*, 546 U. S., at 515–516 (footnote and citation omitted).

IV

Title VII’s charge-filing requirement is not of jurisdictional cast. Federal courts exercise jurisdiction over Title VII actions pursuant to 28 U. S. C. § 1331’s grant of general federal-question jurisdiction, and Title VII’s own jurisdictional provision, 42 U. S. C. § 2000e–5(f)(3) (giving federal courts “jurisdiction [over] actions brought under this subchapter”).⁷ Separate provisions of Title VII, § 2000e–5(e)(1)

⁶“If a time prescription governing the transfer of adjudicatory authority from one Article III court to another appears in a statute, the limitation [will rank as] jurisdictional; otherwise, the time specification fits within the claim-processing category.” *Hamer*, 583 U. S., at 25 (citation omitted).

⁷When Title VII was passed in 1964, 28 U. S. C. § 1331’s grant of general federal-question jurisdiction included an amount-in-controversy requirement. See § 1331(a) (1964 ed.). To ensure that this “limitation would not impede an employment-discrimination complainant’s access to a federal forum,” *Arbaugh v. Y & H Corp.*, 546 U. S. 500, 505 (2006), Congress enacted Title VII’s jurisdiction-conferring provision, 42 U. S. C. § 2000e–

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and (f)(1), contain the Act's charge-filing requirement. Those provisions "d[o] not speak to a court's authority," *EME Homer*, 572 U. S., at 512, or "refer in any way to the jurisdiction of the district courts," *Arbaugh*, 546 U. S., at 515 (quoting *Zipes*, 455 U. S., at 394).

Instead, Title VII's charge-filing provisions "speak to . . . a party's procedural obligations." *EME Homer*, 572 U. S., at 512. They require complainants to submit information to the EEOC and to wait a specified period before commencing a civil action. Like kindred provisions directing parties to raise objections in agency rulemaking, *id.*, at 511–512; follow procedures governing copyright registration, *Reed Elsevier*, 559 U. S., at 157; or attempt settlement, *Union Pacific*, 558 U. S., at 82, Title VII's charge-filing requirement is a processing rule, albeit a mandatory one, not a jurisdictional prescription delineating the adjudicatory authority of courts.⁸

5(f)(3). See *Arbaugh*, 546 U. S., at 505–506. In 1980, Congress eliminated § 1331's amount-in-controversy requirement. See Federal Question Jurisdictional Amendments Act of 1980, § 2, 94 Stat. 2369. Since then, "Title VII's own jurisdictional provision, 42 U. S. C. § 2000e–5(f)(3), has served simply to underscore Congress' intention to provide a federal forum for the adjudication of Title VII claims." *Arbaugh*, 546 U. S., at 506. Title VII also contains a separate jurisdictional provision, § 2000e–6(b), giving federal courts jurisdiction over actions by the Federal Government to enjoin "pattern or practice" discrimination.

⁸ Fort Bend argues that Title VII's charge-filing requirement is jurisdictional because it is "textually linked" to Title VII's jurisdictional provision. Brief for Petitioner 50. Title VII states in 42 U. S. C. § 2000e–5(f)(1) that "a civil action may be brought" after the charge-filing procedures are followed. Section 2000e–5(f)(3) gives federal courts jurisdiction over "actions brought under this subchapter," a subchapter that includes § 2000e–5(f)(1). Therefore, Fort Bend insists, federal jurisdiction lies under § 2000e–5(f)(3) only when a proper EEOC charge is filed. But as just observed, see *supra*, at 9, the charge-filing requirement is stated in provisions discrete from Title VII's conferral of jurisdiction on federal courts. See *Sebelius v. Auburn Regional Medical Center*, 568 U. S. 145, 155 (2013) (a requirement "does not become jurisdictional simply because it is placed in a section of a statute that also contains jurisdictional provisions"); *Gon-*

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Resisting this conclusion, Fort Bend points to statutory schemes that channel certain claims to administrative agency adjudication first, followed by judicial review in a federal court. In *Elgin v. Department of Treasury*, 567 U.S. 1 (2012), for example, the Court held that claims earmarked for initial adjudication by the Merit Systems Protection Board, then review in the Court of Appeals for the Federal Circuit, may not proceed instead in federal district court. *Id.*, at 5–6, 8. See also *Thunder Basin Coal Co. v. Reich*, 510 U.S. 200, 202–204 (1994) (no district court jurisdiction over claims assigned in the first instance to a mine safety commission, whose decisions are reviewable in a court of appeals). Nowhere do these cases, or others cited by Fort Bend, address the issue here presented: whether a precondition to suit is a mandatory claim-processing rule subject to forfeiture, or a jurisdictional prescription.

Fort Bend further maintains that “[t]he congressional purposes embodied in the Title VII scheme,” notably, encouraging conciliation and affording the EEOC first option to bring suit, support jurisdictional characterization of the charge-filing requirement. Brief for Petitioner 27. But a prescription does not become jurisdictional whenever it “promotes important congressional objectives.” *Reed Elsevier*, 559 U.S., at 169, n. 9. And recognizing that the charge-filing requirement is nonjurisdictional gives plaintiffs scant incentive to skirt the instruction. Defendants, after all, have good reason promptly to raise an objection that may rid them of the lawsuit filed against them. A Title VII complainant would be foolhardy consciously to take the risk that the employer would forgo a potentially dispositive defense.

In sum, a rule may be mandatory without being jurisdictional, and Title VII’s charge-filing requirement fits that bill.

zalez v. Thaler, 565 U.S. 134, 145 (2012) (a nonjurisdictional provision does not metamorphose into a jurisdictional limitation by cross-referencing a jurisdictional provision).

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For the reasons stated, the judgment of the Court of Appeals for the Fifth Circuit is

Affirmed.

Syllabus

TAGGART *v.* LORENZEN, EXECUTOR OF THE ESTATE
OF BROWN, ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 18–489. Argued April 24, 2019—Decided June 3, 2019

Petitioner Bradley Taggart formerly owned an interest in an Oregon company. That company and two of its other owners, who are among the respondents here, filed suit in Oregon state court, claiming that Taggart had breached the company’s operating agreement. Before trial, Taggart filed for bankruptcy under Chapter 7 of the Bankruptcy Code. At the conclusion of that proceeding, the Federal Bankruptcy Court issued a discharge order that released Taggart from liability for most prebankruptcy debts. After the discharge order issued, the Oregon state court entered judgment against Taggart in the prebankruptcy suit and awarded attorney’s fees to respondents. Taggart returned to the Federal Bankruptcy Court, seeking civil contempt sanctions against respondents for collecting attorney’s fees in violation of the discharge order. The Bankruptcy Court ultimately held respondents in civil contempt. The Bankruptcy Appellate Panel vacated the sanctions, and the Ninth Circuit affirmed the panel’s decision. Applying a subjective standard, the Ninth Circuit concluded that a “creditor’s good faith belief” that the discharge order “does not apply to the creditor’s claim precludes a finding of contempt, even if the creditor’s belief is unreasonable.” 888 F.3d 438, 444.

Held: A court may hold a creditor in civil contempt for violating a discharge order if there is *no fair ground of doubt* as to whether the order barred the creditor’s conduct. Pp. 559–565.

(a) This conclusion rests on a longstanding interpretive principle: When a statutory term is “‘obviously transplanted from another legal source,’” it “‘brings the old soil with it.’” *Hall v. Hall*, 584 U.S. 59, 73. Here, the bankruptcy statutes specifying that a discharge order “operates as an injunction,” 11 U.S.C. § 524(a)(2), and that a court may issue any “order” or “judgment” that is “necessary or appropriate” to “carry out” other bankruptcy provisions, § 105(a), bring with them the “old soil” that has long governed how courts enforce injunctions. In cases outside the bankruptcy context, this Court has said that civil contempt “should not be resorted to where there is [a] fair ground of doubt as to the wrongfulness of the defendant’s conduct.” *California*

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Artificial Stone Paving Co. v. Molitor, 113 U. S. 609, 618. This standard is generally an objective one. A party's subjective belief that she was complying with an order ordinarily will not insulate her from civil contempt if that belief was objectively unreasonable. Subjective intent, however, is not always irrelevant. Civil contempt sanctions may be warranted when a party acts in bad faith, and a party's good faith may help to determine an appropriate sanction. These traditional civil contempt principles apply straightforwardly to the bankruptcy discharge context. Under the fair ground of doubt standard, civil contempt may be appropriate when the creditor violates a discharge order based on an objectively unreasonable understanding of the discharge order or the statutes that govern its scope. Pp. 560–562.

(b) The standard applied by the Ninth Circuit is inconsistent with traditional civil contempt principles, under which parties cannot be insulated from a finding of civil contempt based on their subjective good faith. Taggart, meanwhile, argues for a standard that would operate much like a strict-liability standard. But his proposal often may lead creditors to seek advance determinations as to whether debts have been discharged, creating the risk of additional federal litigation, additional costs, and additional delays. His proposal, which follows the standard some courts have used to remedy violations of automatic stays, also ignores key differences in text and purpose between the statutes governing automatic stays and discharge orders. Pp. 562–565.

888 F. 3d 438, vacated and remanded.

BREYER, J., delivered the opinion for a unanimous Court.

Daniel L. Geyser argued the cause for petitioner. With him on the briefs was *John M. Berman*.

Sopan Joshi argued the cause for the United States as *amicus curiae* urging vacatur. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Solicitor General Stewart*, *Mark B. Stern*, *Sarah Carroll*, *Thomas J. Clark*, and *Paul A. Allulis*.

Nicole A. Saharsky argued the cause for respondents. With her on the brief were *Andrew E. Tauber*, *Michael B. Kimberly*, *Matthew A. Waring*, *Janet M. Schroer*, and *Hollis K. McMilan*.*

*Briefs of *amici curiae* urging reversal were filed for the National Consumer Bankruptcy Rights Center et al. by *Tara Twomey* and *Mat-*

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JUSTICE BREYER delivered the opinion of the Court.

At the conclusion of a bankruptcy proceeding, a bankruptcy court typically enters an order releasing the debtor from liability for most prebankruptcy debts. This order, known as a discharge order, bars creditors from attempting to collect any debt covered by the order. See 11 U.S.C. § 524(a)(2). The question presented here concerns the criteria for determining when a court may hold a creditor in civil contempt for attempting to collect a debt that a discharge order has immunized from collection.

The Bankruptcy Court, in holding the creditors here in civil contempt, applied a standard that it described as akin to “strict liability” based on the standard’s expansive scope. *In re Taggart*, 522 B. R. 627, 632 (Bkrtcy. Ct. Ore. 2014). It held that civil contempt sanctions are permissible, irrespective of the creditor’s beliefs, so long as the creditor was “‘aware of the discharge’” order and “‘intended the actions which violate[d]’” it. *Ibid.* (quoting *In re Hardy*, 97 F. 3d

thew J. Mason; and for Judge Eugene Wedoff (Ret.) et al. by *David R. Kuney*.

Briefs of *amici curiae* urging affirmance were filed for the State of California et al. by *Xavier Becerra*, Attorney General of California, *Edward C. DuMont*, Solicitor General, *Janill L. Richards*, Principal Deputy Solicitor General, *Diane S. Shaw*, Senior Assistant Attorney General, and *Molly K. Mosley*, *Robert E. Asperger*, *Craig D. Rust*, and *Karli Eisenberg*, Deputy Attorneys General, and by the Attorneys General for their respective jurisdictions as follows: *Kevin G. Clarkson* of Alaska, *Phil Weiser* of Colorado, *William Tong* of Connecticut, *Karl A. Racine* of the District of Columbia, *Ashley Moody* of Florida, *Clare E. Connors* of Hawaii, *Lawrence G. Wasden* of Idaho, *Kwame Raoul* of Illinois, *Curtis T. Hill, Jr.*, of Indiana, *Tom Miller* of Iowa, *Derek Schmidt* of Kansas, *Aaron M. Frey* of Maine, *Brian E. Frosh* of Maryland, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Doug Peterson* of Nebraska, *Wayne Stenehjem* of North Dakota, *Dave Yost* of Ohio, *Ellen F. Rosenblum* of Oregon, *Josh Shapiro* of Pennsylvania, *Jason Ravnsborg* of South Dakota, *Herbert H. Slatery III* of Tennessee, *Sean D. Reyes* of Utah, *Thomas J. Donovan, Jr.*, of Vermont, *Mark R. Herring* of Virginia, and *Robert W. Ferguson* of Washington; and for the National Creditors Bar Association by *Nicole M. Strickler*.

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1384, 1390 (CA11 1996)). The Court of Appeals for the Ninth Circuit, however, disagreed with that standard. Applying a subjective standard instead, it concluded that a court cannot hold a creditor in civil contempt if the creditor has a “good faith belief” that the discharge order “does not apply to the creditor’s claim.” *In re Taggart*, 888 F. 3d 438, 444 (2018). That is so, the Court of Appeals held, “even if the creditor’s belief is unreasonable.” *Ibid.*

We conclude that neither a standard akin to strict liability nor a purely subjective standard is appropriate. Rather, in our view, a court may hold a creditor in civil contempt for violating a discharge order if there is *no fair ground of doubt* as to whether the order barred the creditor’s conduct. In other words, civil contempt may be appropriate if there is no objectively reasonable basis for concluding that the creditor’s conduct might be lawful.

I

Bradley Taggart, the petitioner, formerly owned an interest in an Oregon company, Sherwood Park Business Center. That company, along with two of its other owners, brought a lawsuit in Oregon state court, claiming that Taggart had breached the business center’s operating agreement. (We use the name “Sherwood” to refer to the company, its two owners, and—in some instances—their former attorney, who is now represented by the executor of his estate. The company, the two owners, and the executor are the respondents in this case.)

Before trial, Taggart filed for bankruptcy under Chapter 7 of the Bankruptcy Code, which permits insolvent debtors to discharge their debts by liquidating assets to pay creditors. See 11 U. S. C. §§ 704(a)(1), 726. Ultimately, the Federal Bankruptcy Court wound up the proceeding and issued an order granting him a discharge. Taggart’s discharge order, like many such orders, goes no further than the statute: It simply says that the debtor “shall be granted a discharge under § 727.” App. 60; see United States Courts, Order of Discharge: Official Form 318 (Dec. 2015), <http://www.uscourts.gov/forms/federal>

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www.uscourts.gov/sites/default/files/form_b318_0.pdf (as last visited May 31, 2019). Section 727, the statute cited in the discharge order, states that a discharge relieves the debtor “from all debts that arose before the date of the order for relief,” “[e]xcept as provided in section 523.” § 727(b). Section 523 then lists in detail the debts that are exempt from discharge. §§ 523(a)(1)–(19). The words of the discharge order, though simple, have an important effect: A discharge order “operates as an injunction” that bars creditors from collecting any debt that has been discharged. § 524(a)(2).

After the issuance of Taggart’s federal bankruptcy discharge order, the Oregon state court proceeded to enter judgment against Taggart in the prebankruptcy suit involving Sherwood. Sherwood then filed a petition in state court seeking attorney’s fees that were incurred *after* Taggart filed his bankruptcy petition. All parties agreed that, under the Ninth Circuit’s decision in *In re Ybarra*, 424 F. 3d 1018 (2005), a discharge order would normally cover and thereby discharge postpetition attorney’s fees stemming from prepetition litigation (such as the Oregon litigation) *unless* the discharged debtor “‘returned to the fray’” after filing for bankruptcy. *Id.*, at 1027. Sherwood argued that Taggart had “returned to the fray” postpetition and therefore was liable for the postpetition attorney’s fees that Sherwood sought to collect. The state trial court agreed and held Taggart liable for roughly \$45,000 of Sherwood’s postpetition attorney’s fees.

At this point, Taggart returned to the Federal Bankruptcy Court. He argued that he had not returned to the state-court “fray” under *Ybarra*, and that the discharge order therefore barred Sherwood from collecting postpetition attorney’s fees. Taggart added that the court should hold Sherwood in civil contempt because Sherwood had violated the discharge order. The Bankruptcy Court did not agree. It concluded that Taggart had returned to the fray. Finding no violation of the discharge order, it refused to hold Sherwood in civil contempt.

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Taggart appealed, and the Federal District Court held that Taggart had not returned to the fray. Hence, it concluded that Sherwood violated the discharge order by trying to collect attorney’s fees. The District Court remanded the case to the Bankruptcy Court.

The Bankruptcy Court, noting the District Court’s decision, then held Sherwood in civil contempt. In doing so, it applied a standard it likened to “strict liability.” 522 B. R., at 632. The Bankruptcy Court held that civil contempt sanctions were appropriate because Sherwood had been “‘aware of the discharge’” order and “‘intended the actions which violate[d]’” it. *Ibid.* (quoting *In re Hardy*, 97 F. 3d, at 1390). The court awarded Taggart approximately \$105,000 in attorney’s fees and costs, \$5,000 in damages for emotional distress, and \$2,000 in punitive damages.

Sherwood appealed. The Bankruptcy Appellate Panel vacated these sanctions, and the Ninth Circuit affirmed the panel’s decision. The Ninth Circuit applied a very different standard than the Bankruptcy Court. It concluded that a “creditor’s good faith belief” that the discharge order “does not apply to the creditor’s claim precludes a finding of contempt, even if the creditor’s belief is unreasonable.” 888 F. 3d, at 444. Because Sherwood had a “good faith belief” that the discharge order “did not apply” to Sherwood’s claims, the Court of Appeals held that civil contempt sanctions were improper. *Id.*, at 445.

Taggart filed a petition for certiorari, asking us to decide whether “a creditor’s good-faith belief that the discharge injunction does not apply precludes a finding of civil contempt.” Pet. for Cert. I. We granted certiorari.

II

The question before us concerns the legal standard for holding a creditor in civil contempt when the creditor attempts to collect a debt in violation of a bankruptcy discharge order. Two Bankruptcy Code provisions aid our

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efforts to find an answer. The first, § 524, says that a discharge order “operates as an injunction against the commencement or continuation of an action, the employment of process, or an act, to collect, recover or offset” a discharged debt. 11 U.S.C. § 524(a)(2). The second, § 105, authorizes a court to “issue any order, process, or judgment that is necessary or appropriate to carry out the provisions of this title.” § 105(a).

In what circumstances do these provisions permit a court to hold a creditor in civil contempt for violating a discharge order? In our view, these provisions authorize a court to impose civil contempt sanctions when there is no objectively reasonable basis for concluding that the creditor’s conduct might be lawful under the discharge order.

A

Our conclusion rests on a longstanding interpretive principle: When a statutory term is “‘obviously transplanted from another legal source,’” it “‘brings the old soil with it.’” *Hall v. Hall*, 584 U.S. 59, 73 (2018) (quoting Frankfurter, *Some Reflections on the Reading of Statutes*, 47 Colum. L. Rev. 527, 537 (1947)); see *Field v. Mans*, 516 U.S. 59, 69–70 (1995) (applying that principle to the Bankruptcy Code). Here, the statutes specifying that a discharge order “operates as an injunction,” § 524(a)(2), and that a court may issue any “order” or “judgment” that is “necessary or appropriate” to “carry out” other bankruptcy provisions, § 105(a), bring with them the “old soil” that has long governed how courts enforce injunctions.

That “old soil” includes the “potent weapon” of civil contempt. *Longshoremen v. Philadelphia Marine Trade Assn.*, 389 U.S. 64, 76 (1967). Under traditional principles of equity practice, courts have long imposed civil contempt sanctions to “coerce the defendant into compliance” with an injunction or “compensate the complainant for losses” stemming from the defendant’s noncompliance with an injunction.

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United States v. Mine Workers, 330 U. S. 258, 303–304 (1947); see D. Dobbs & C. Roberts, *Law of Remedies* §2.8, p. 132 (3d ed. 2018); J. High, *Law of Injunctions* §1449, p. 940 (2d ed. 1880).

The bankruptcy statutes, however, do not grant courts unlimited authority to hold creditors in civil contempt. Instead, as part of the “old soil” they bring with them, the bankruptcy statutes incorporate the traditional standards in equity practice for determining when a party may be held in civil contempt for violating an injunction.

In cases outside the bankruptcy context, we have said that civil contempt “should not be resorted to where there is [a] *fair ground of doubt* as to the wrongfulness of the defendant’s conduct.” *California Artificial Stone Paving Co. v. Molitor*, 113 U. S. 609, 618 (1885) (emphasis added). This standard reflects the fact that civil contempt is a “severe remedy,” *ibid.*, and that principles of “basic fairness requir[e] that those enjoined receive explicit notice” of “what conduct is outlawed” before being held in civil contempt, *Schmidt v. Lessard*, 414 U. S. 473, 476 (1974) (*per curiam*). See *Longshoremen, supra*, at 76 (noting that civil contempt usually is not appropriate unless “those who must obey” an order “will know what the court intends to require and what it means to forbid”); 11A C. Wright, A. Miller, & M. Kane, *Federal Practice and Procedure* §2960, pp. 430–431 (2013) (suggesting that civil contempt may be improper if a party’s attempt at compliance was “reasonable”).

This standard is generally an *objective* one. We have explained before that a party’s subjective belief that she was complying with an order ordinarily will not insulate her from civil contempt if that belief was objectively unreasonable. As we said in *McComb v. Jacksonville Paper Co.*, 336 U. S. 187 (1949), “[t]he absence of wilfulness does not relieve from civil contempt.” *Id.*, at 191.

We have not held, however, that subjective intent is always irrelevant. Our cases suggest, for example, that civil

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contempt sanctions may be warranted when a party acts in bad faith. See *Chambers v. NASCO, Inc.*, 501 U. S. 32, 50 (1991). Thus, in *McComb*, we explained that a party's "record of continuing and persistent violations" and "persistent contumacy" justified placing "the burden of any uncertainty in the decree . . . on [the] shoulders" of the party who violated the court order. 336 U. S., at 192–193. On the flip side of the coin, a party's good faith, even where it does not bar civil contempt, may help to determine an appropriate sanction. Cf. *Young v. United States ex rel. Vuitton et Fils S. A.*, 481 U. S. 787, 801 (1987) ("[O]nly the least possible power adequate to the end proposed should be used in contempt cases" (quotation altered)).

These traditional civil contempt principles apply straightforwardly to the bankruptcy discharge context. The typical discharge order entered by a bankruptcy court is not detailed. See *supra*, at 557–558. Congress, however, has carefully delineated which debts are exempt from discharge. See §§ 523(a)(1)–(19). Under the fair ground of doubt standard, civil contempt therefore may be appropriate when the creditor violates a discharge order based on an objectively unreasonable understanding of the discharge order or the statutes that govern its scope.

B

The Solicitor General, *amicus* here, agrees with the fair ground of doubt standard we adopt. Brief for United States as *Amicus Curiae* 13–15. And the respondents stated at oral argument that it would be appropriate for courts to apply that standard in this context. Tr. of Oral Arg. 43. The Ninth Circuit and petitioner Taggart, however, each believe that a different standard should apply.

As for the Ninth Circuit, the parties and the Solicitor General agree that it adopted the wrong standard. So do we. The Ninth Circuit concluded that a "creditor's good faith belief" that the discharge order "does not apply to the credi-

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tor's claim precludes a finding of contempt, even if the creditor's belief is unreasonable." 888 F. 3d, at 444. But this standard is inconsistent with traditional civil contempt principles, under which parties cannot be insulated from a finding of civil contempt based on their subjective good faith. It also relies too heavily on difficult-to-prove states of mind. And it may too often lead creditors who stand on shaky legal ground to collect discharged debts, forcing debtors back into litigation (with its accompanying costs) to protect the discharge that it was the very purpose of the bankruptcy proceeding to provide.

Taggart, meanwhile, argues for a standard like the one applied by the Bankruptcy Court. This standard would permit a finding of civil contempt if the creditor was aware of the discharge order and intended the actions that violated the order. Brief for Petitioner 19; cf. 522 B. R., at 632 (applying a similar standard). Because most creditors are aware of discharge orders and intend the actions they take to collect a debt, this standard would operate much like a strict-liability standard. It would authorize civil contempt sanctions for a violation of a discharge order regardless of the creditor's subjective beliefs about the scope of the discharge order, and regardless of whether there was a reasonable basis for concluding that the creditor's conduct did not violate the order. Taggart argues that such a standard would help the debtor obtain the "fresh start" that bankruptcy promises. He adds that a standard resembling strict liability would be fair to creditors because creditors who are unsure whether a debt has been discharged can head to federal bankruptcy court and obtain an advance determination on that question before trying to collect the debt. See Fed. Rule Bkrcty. Proc. 4007(a).

We doubt, however, that advance determinations would provide a workable solution to a creditor's potential dilemma. A standard resembling strict liability may lead risk-averse creditors to seek an advance determination in bankruptcy